

## 24SMCV02809 24SMCV02809

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-02

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

2, 2026

CASE NUMBER

24SMCV02809

MOTION

Compel

Compliance with Deposition Subpoena

MOVING PARTIES

Plaintiffs

27715 PCH LLC and The Grind Factory Holdings LLC

OPPOSING PARTIES

none

This case arises from a dispute concerning the sale of luxury residential property. On June 11, 2024, Plaintiff 27715 PCH LLC filed suit against Defendants Closing Agents Escrow ("Closing Agents"); First American Title Company ("First American") and Judith Sender ("Sender").

The operative Second Amended Complaint ("SAC") alleges three causes of action by Plaintiffs 27715 PCH LLC and The Grind Factory Holdings LLC ("Plaintiffs") against Closing Agents and Sender only ("Defendants") for (1) Conspiracy to Commit Fraud; (2) Aiding and Abetting; and (3) Negligence.

Plaintiffs now move for an order compelling third-party Ando Hacobian to attend and testify at deposition and for monetary sanctions. The motion is unopposed.

#### LEGAL STANDARD

"In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).)" (Board of Registered Nursing v. Superior Court of Orange County (2021) 59 Cal.App.5th 1011, 1030 (hereafter Board of Registered Nursing).) "To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena." (Ibid.).)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.' (Code Civ. Proc., § 2025.480, subd. (a).)" (Board of Registered Nursing, supra, 59 Cal.App.5th at p. 1031.) "[D]iscovery conducted by

way of a business records subpoena is a "deposition." [Citation.] (Id. at pp. 1031-1032.) "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably

made by [a party or a witness] . . . may make an order . . . directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1.)

#### ANALYSIS

“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail at an address specified on the deposition record.” (Cal. Rules of Court, rule 3.1346.)

Here,  
the proof of service indicates Plaintiffs served the moving papers on Hacopian electronically and by U.S. mail, not personal service. Further, there is no declaration or other evidence demonstrating that Hacopian agreed to accept electronic service or service by mail. As such, the Court  
finds the motion to be procedurally defective.

#### CONCLUSION AND ORDER

For the reasons stated, the Court denies the motion as procedurally defective.

Plaintiffs shall provide notice  
of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: July 2, 2026 \_\_\_\_/s/\_\_\_\_

Michael  
E. Whitaker

Judge  
of the Superior Court